

ANNEX 1 – JUSTIFICATION AND APPROVAL

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FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Naval Supply Systems Command (NAVSUP), Fleet logistics Center Jacksonville (FLCJ)

2. Description of the Action Being Approved.

Authority to award a bridge contract on a sole source basis in support of Naval Construction Group TWO (NCG-2), to facilitate continued support during a post-award protest and subsequent corrective measures, to include the re-evaluation of the protestors offer, thereby preventing a gap in service.

3. Description of Supplies/Services.

Provide Project Supervisor, Supply Technician, Warehouse Support, and non-Civil Engineering Support Equipment (Non-CESE) Table of Allowances (TOA) Shop Support Services to augment equipment support for the Naval Construction Battalion Center (NCBC) Gulfport, MS.

Base Period of Performance: 14-Mar-2025 to 13-Jun-2025

Option 1: 14-Jun-2025 to 13-Jul-2025

Option 2: 14-Jul-2025 to 13-Aug-2025

Estimated Dollar Value

	Base Period Total	Option 1 Total	Option 2 Total	Total Amount
F				
E				
D				
C				
B				
A				

4. Statutory Authority Permitting Other Than Full and Open Competition.

This Justification and Approval is based upon the authority of 41 U.S.C. 1901(e)(2), Special Rules for Commercial Products and Commercial.

5. Rationale Justifying Use of Cited Statutory Authority.

Bridge Modification N6883619F0352 P00017 was issued on 30-Sep-2024, to provide an opportunity for negotiations.

A competitive RFQ (RFQ1714015) was issued via GSA e-Buy on 30-Jul-2024. Responses to the RFQ were received by 29-Aug-2024. The Contracting Officer received quotes from seven (7)

contractors capable of fulfilling the requirements. Of those, two (2) were deemed non-responsive, and three (3) were considered technically unacceptable.

Although not required by the terms and conditions of the solicitation, the Contracting Officer, in coordination with FLCJ OGC and FLCJ Policy, determined it was in the Government's best interest to engage in negotiations to expand the pool of qualified vendors.

Award of GSA Task Order was made on 26-Feb-2025 for a base period of performance of 01-Mar-2025 to 31-Aug-2025 with four (4) 12-month option periods, and the option to extend services in accordance with FAR clause 52.217-8 if needed and deemed in the Governments best interest.

After debriefing unsuccessful offerors on 04-06 March 2025 a notice of protest was received on 7-Mar-2025, which requires a stay of performance on N6883625F0047. The impact to a gap in service provided by this contract are direct and immediate. This task order supports the issuance, receipt, packaging, inventory, and storage of material and equipment for active and reservice units for Naval Construction Group TWO (NCG-2) at Naval Construction Battalion Center (NCBC) Gulfport, MS. A gap in service of this magnitude would result in immediate stoppage of capabilities and severely negatively impact Naval readiness.

The incumbent (and awardee of N6883625F0047), Integrated Logistics Services (ILS), LLC already has the resources/manpower with the adequate clearance levels, who are cleared for base access, and have systems in place to perform on such a short-fuse timeline. Therefore, ILS is the only responsible source that can perform (continue) these services without a lapse in service until the protest is resolved and corrective measures completed, to include the re-evaluation of the protestors offer, and performance can either resume, or a new contract can be awarded.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

RFQ (RFQ1714015) was issued via GSA e-Buy on 30-Jul-2024 as a total small business set-aside. As a result of the RFQ seven (7) quotes were received. Concurrent with the use of bridge modification N6883619F0352 P0017, the Government engaged in negotiations and made a timely award on 26-Feb-2025 to

Integrated Logistics Services (ILS), who represented the best value to the Government. at [REDACTED]. It is anticipated that a competitive award will be made after the protest is resolved and corrective measures are completed.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

RFQ (RFQ1714015) was issued via GSA e-Buy on 30-Jul-2024 as a total small business set-aside. The Government engaged in negotiations and made a timely award on 26-Feb-2025. It is anticipated that a competitive award will be made after the protest is resolved to the offeror that represents the best value to the Government.